

CYPRUS REPUBLIC

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OFFICE OF THE COMMISSIONER FOR PERSONAL DATA PROTECTION

DECISION

Complaint regarding the violation of personal data

Case Incidents

Based on the duties and powers conferred upon me by Article 57(1)(f) of Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter referred to as the "Regulation"), I have examined a complaint submitted to my Office, pursuant to Article 77(1) of the Regulation, against the Publications "ARKTINOS" Ltd (newspaper POLITIS) (hereinafter referred to as the "Respondent" or the "Entity"), the company Facebook Ireland Ltd (hereinafter "Facebook Ireland"), and the company Facebook Inc. The complaint was submitted to the Data Protection Supervisory Authority of Austria on August 17, 2020, by a resident of Austria (hereinafter referred to as the "complainant"), who is represented, pursuant to Article 80(1) of the Regulation, by the non-profit organization noyb – European Centre for Digital Rights.

Based on the investigation, I found a violation of the Regulation by the Respondent and, therefore, I issue this Decision.

A.

2. Regulation. In the complaint, it is stated, among other things, that:

2.1. The complainant, on August 12, 2020, at 11:43 a.m., visited the website <https://politis.com.cy> (hereinafter referred to as the "website"), while logged in with his email address to a Facebook account,

2.2. The Respondent has integrated the HTML code for Facebook Services (including Facebook Connect),

2.3. During the complainant's visit to the website, the Respondent processed the complainant's personal data (at least the IP address and cookie data), some of which were transmitted to Facebook Inc. in the USA. The complainant does not have the technical means to ascertain whether this data transfer occurred directly between the Respondent and Facebook Inc. or through Facebook Ireland as an intermediary,

The complaint concerns an alleged violation of the provisions of Chapter V of the Regulation.

2.4. Facebook Connect is a service used by third-party websites, enabling the flow of the user's personal data between the website and Facebook,

2.5. The use of Facebook Connect was subject, at the time of the complaint submission, to the Facebook Business Tools Terms and Facebook Data Processing Terms documents. These two documents would be updated effective August 31, 2020 (documents New Facebook Business Tools Terms and New Facebook Data Processing Terms),

2.6. Interpreting the Facebook Business Tools Terms and Facebook Data Processing Terms documents, which were in effect at the time of the complaint submission, it is concluded that:

2.6.1. Facebook Ireland is the contractual partner of the data controller and acts as the processor, according to Article 4(8) of the Regulation,

2.6.2. Facebook Inc. acts as a sub-processor.

This conclusion is also supported by the New Facebook Business Tools Terms and New Facebook Data Processing Terms documents,

2.7. In any case, there has been a transfer of the complainant's personal data from the Respondent to the USA. This transfer, from the Respondent, which is a company based in the EEA, to Facebook Inc.

or to any other processor in the USA (or to any other country outside the EEA) requires a legal basis according to Article 44 of the Regulation,

as the CJEU has invalidated the "EU-U.S. Privacy Shield" in decision C-311/18, the data controller can no longer rely on the transfer of data to Facebook Inc. based on an adequacy decision, pursuant to Article 45 of the Regulation,

2.8. However, the Facebook team and the data controller continue to attempt to base the transfer on the invalidated "EU-U.S. Privacy Shield," as evidenced by point 4 of the Facebook Data Processing Terms document: "Facebook, Inc. has made commitments under the EU-U.S. Privacy Shield and Swiss-U.S. Privacy Shield that may apply to data transferred by you or Facebook Ireland Limited to Facebook, Inc. under the Applicable Product Terms. When applicable as the means to transfer Personal Data outside of the EU or Switzerland to Facebook, Inc. where you are in the European Union or Switzerland, you acknowledge that the Privacy Shield Terms (<https://www.facebook.com/legal/privacysieldtermsforadvertisers>) apply to such data in addition to the Applicable Product Terms.",

2.9. Regarding these data transfers, the Facebook Data Processing Terms document contains a link and reference to Privacy Shield Terms, which in turn, connects to the document Facebook Inc. and the EU-U.S. and Swiss-U.S. Privacy Shield,

2.10. A similar reference exists in the New Facebook Data Processing Terms document, which would come into effect 6 weeks after the CJEU's decision: "Facebook, Inc., which is used by Facebook Ireland as a sub-processor, has made commitments under the EU-U.S. Privacy Shield and Swiss-U.S. Privacy Shield that may...

apply to Personal Information transferred by you or Facebook Ireland to Facebook, Inc. under the Applicable Product Terms. When applicable as the means to transfer Personal Information outside of the EU/EEA or Switzerland to Facebook, Inc., you acknowledge that the Privacy Shield Terms apply in addition to the Applicable Product Terms.

2.12. A regular data transfer system based on a revoked adequacy decision constitutes a serious, systematic, and, in light of the document New Facebook Data Processing Terms, intentional violation of Article 45 and the subsequent articles of the Regulation.

2.13. The data controller cannot also base the data transfer on standard contractual clauses, according to Article 46(2)(c) and (d) of the Regulation, if the third country does not ensure adequate protection of personal data transferred under these clauses, pursuant to EU law. The CJEU explicitly found that further transfers to companies falling under 50 U.S. Code § 1881a not only violate the relevant articles of Chapter V of the Regulation but also Articles 7 and 8 of the Charter of Fundamental Rights of the EU, as well as the essence of Article 47 of the Charter (C-362/14 ("Schrems I"), para. 95.). Therefore, any further transfer violates the fundamental right to privacy, data protection, and the right to effective judicial protection and to a fair trial.

2.14. Facebook Inc. qualifies as a provider of electronic communications services within the meaning of 50 U.S. Code § 1881(b)(4) and, therefore, is subject to U.S. information surveillance under 50 U.S. Code § 1881a ("FISA 702"). As evidenced by the "Snowden Slides" and Facebook's Transparency Report, Facebook Inc. actively provides personal data to the U.S. government under 50 U.S. Code § 1881a.

2.15. Consequently, the data controller is unable to ensure adequate protection of the personal data of the complainant transferred to Facebook Inc. Therefore, the data controller has a legal obligation to refrain from transferring the complainant's data – or personal data of any others – to Facebook Inc. However, for more than a month following the decision, the data controller has not acted in accordance with the decision.

2.16. The Facebook team continues to accept data transfers from the EU/EEA, both on the basis of the revoked "EU-U.S. Privacy Shield" and the standard contractual clauses, despite the clear ruling of the CJEU and the violation of Articles 44 to 49 of the Regulation. Facebook Inc. further discloses personal

data from the EU/EEA to the U.S. government, in violation of Article 48 of the Regulation.

2.17. According to Article 3(2)(a) of the Regulation, the Regulation extends to processors who are not established in the Union when the processing activities relate to the offering of services to data subjects in the Union. Consequently, there is direct jurisdiction against Facebook Inc. While Facebook Ireland may claim that it falls under the jurisdiction of the Irish Supervisory Authority, as the lead Supervisory Authority (Article 56 of the Regulation), there is no main establishment of Facebook Inc. in the Union. Therefore, any mechanism of transfer that the data controller and/or Facebook Ireland relied upon has direct jurisdiction over Facebook Inc., in its activities as a processor.

2.18. Pursuant to Articles 58 and 83 of the Regulation, the competent Supervisory Authority may exercise corrective powers and enforcement powers, both against the data controller and the processor Facebook Ireland and the sub-processor Facebook Inc.

2.19. According to the aforementioned decision of the CJEU, the competent Supervisory Authority must suspend or terminate the transfer of personal data to the third country, pursuant to Article 58(2)(f) and (i) of the Regulation.

2.20. The complainant requests that:

2.20.1. the complaint be fully investigated, pursuant to Article 58 of the Regulation, and clarified:

(a) what personal data was transferred by the data controller and/or Facebook Ireland to Facebook Inc. in the U.S. or to any other third country or international organization,

(b) data transfer,

(c) whether the provisions of the Facebook Business Tools Terms and Facebook Data Processing Terms, at the time of filing the complaint and as will...

amendments made as of August 31, 2020, fulfilled the requirements of Article 28 of the Regulation regarding the transfer of personal data to third countries,

2.20.2. an immediate prohibition or suspension of any data transfer from the Controller and/or Facebook Ireland to Facebook Inc. in the U.S. was imposed, and the return of the data to the EU/EEA or to another country providing adequate protection was ordered, pursuant to Article 58(2)(d), (f), and (i) of the Regulation,

2.20.3. an effective, proportionate, and deterrent fine was imposed against the Controller, Facebook Ireland, and Facebook Inc., pursuant to Article 83(5)(c) of the Regulation, taking into account that:

(a)

of the Regulation),

(b) at the time of the complaint submission, more than one month had passed since the C-311/18 decision of the CJEU and the Controller had not taken any measures to bring the processing operations into compliance with the provisions of the Regulation (Article 83(2)(b) of the Regulation).

Where reference is made above to the data controller, it is understood to mean the Controller.

3. In the context of the investigation of the complaint, my Office sent a letter to the Controller with clarifying questions on December 23, 2020. This letter was resent to the Controller on January 7 and February 18, 2021.

4. The Controller, in a letter dated February 18, 2021, submitted the response of the technician who developed the website. Specifically, it was mentioned that the complainant is likely only one of thousands of users (Article 83(2)(a) Positions of the Controller.

The Controller, in a letter dated January 26, 2022, stated, among other things, that to the best of their knowledge, the specific codes were not present on the website, as the "login with Facebook etc." was never used. However, the relevant questionnaire that was sent was not answered.

5. On January 20, 2022, my Office sent a new letter to the Controller, and after it was pointed out again that, based on the analysis of the data and the file submitted by the complainant, as well as a check on the website, a Facebook tool is used, new questions were submitted, and it was requested that the questions included in the Office's letter dated December 23, 2020, be answered.

6. The following:

6.1. regarding the questions included in my Office's letter dated December 23, 2020, which concerned the Facebook Connect tool, it was already mentioned through the letter dated February 18, 2021, that the Facebook Connect tool is not used. However, further communication was made with the website's developer, who confirmed that this tool was never used on the website. Additionally, a text in English was provided explaining what this tool is and what data it processes ("When a user chooses to access a third-party website through Facebook Connect, they allow that website to retrieve information they have given to Facebook, including their full name, pictures, wall posts, friend information, etc."). It was stated that the Controller never had access to such sensitive information, let alone process it.

6.2. The Facebook tools that were, and continued to be at the time of the response, integrated are Facebook domain verification and Facebook pixel,

6.2.1. Facebook domain verification is a tool for the purpose of verifying the website, to avoid being blocked from the platform in cases of spam reporting, and

6.2.2. the Facebook pixel tool is a tool for paid advertisements ("paid ads") of the Controller's news articles on Facebook,

6.3. under no circumstances does the Controller collect or process personal data of users. The only use of Facebook that the Controller engages in is to promote its news articles to a wider audience, using the criteria provided by the platform,

6.4. the Controller does not maintain a record of personal data of any user who visits the website via a link on Facebook.

In a letter from the Office to the Controller, dated May 30, 2022,

7. it was mentioned, among other things, that the use of the Facebook pixel tool results in the processing of data of users - visitors of the website. This data can lead to the identification of users - visitors, possibly in combination with other data. Therefore, the visit of internet users to the website results in the processing of their personal data, even if it was not the intention of the Controller or the Controller does not maintain, as stated, a record of personal data of any user visiting the website from a link on Facebook.

Legal Framework

However, the Respondent did not provide any response or update to my Office.

Facebook. Therefore, it was requested again that the Respondent answer the questions included in the letter from the Office, dated January 20, 2022.

8.

B.

9.

According to Article 4 of the Regulation, personal data is interpreted as "any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, psychological, economic, cultural, or social identity of that natural person."

10. As the data controller, Article 4 of the Regulation defines it as "the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union law or the law of a Member State, the controller or the specific criteria for its designation may be provided for by Union law or the law of a Member State."

11. As the processor, Article 4 of the Regulation defines it as "the natural or legal person, public authority, agency, or other body which processes personal data on behalf of the controller."

12. Article 5 of the Regulation provides the following:

Regarding the principles governing the processing of personal data,

"1. Personal data:

- a) shall be processed lawfully and fairly in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency'), collected for specified, explicit, and legitimate purposes and not
- b) processed further in a manner that is incompatible with those purposes; further processing for archiving purposes in the public interest or for scientific or historical research purposes or statistical purposes shall not be considered incompatible with the initial purposes according to Article 89 paragraph 1 ('purpose limitation'),
- c) shall be accurate and, when necessary, kept up to date; every reasonable step must be taken to ensure that personal data that are inaccurate, with respect to the purposes for which they are processed, are erased or rectified without delay ('accuracy'),
- d) shall be kept in a form which permits identification of data subjects for no longer than is necessary for the purposes for which the personal data are processed ('storage limitation'); personal data may be stored for longer periods, provided that the personal data will be processed solely for archiving purposes in the public interest, for scientific or historical research purposes or for statistical purposes, in accordance with Article 89 paragraph 1 and provided that appropriate technical and organizational measures are applied to ensure the rights and freedoms of the data subject ('limitation of storage period'),
- e) shall be processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures ('integrity and confidentiality').

2. compliance with paragraph 1 ('accountability')." The controller is responsible for and is able to demonstrate

13. Pursuant to Article 44 of the Regulation, it is provided that:

"Any transfer of personal data which are undergoing processing or are intended to be processed after transfer to a third country or an international organization shall take place only if, subject to the other provisions of this Regulation, the conditions laid down in this chapter are complied with by the controller and the processor, including for onward transfers of personal data from the third country or international organization to another third country or another international organization. All provisions of this chapter shall apply in order to ensure that the level of protection of natural persons guaranteed by this Regulation is not undermined."

14. Pursuant to Article 57, paragraph 1, point (f) of the Regulation, the Commissioner for Personal Data Protection has the duty to:

"handle complaints lodged by the data subject or by a body, organization, or association according to Article 80 and investigate, to the extent appropriate, the subject matter of the complaint and inform the complainant about the progress and outcome of the investigation within a reasonable time, particularly if further investigation or coordination with another supervisory authority is required."

15. Regarding the submission of a complaint to the Supervisory Authority, Article 77 of the Regulation provides that:

"Subject to any other administrative or judicial remedies, every data subject has the right to lodge a complaint with a supervisory authority, in particular in the Member State of their habitual residence, place of work, or the place of the alleged infringement, if the data subject believes that the processing of personal data concerning them infringes this Regulation."

16. Pursuant to Article 58, paragraph 2, of the Regulation, the Data Protection Commissioner has the following corrective powers:

- a) to instruct the controller to notify the breach
- b) to issue warnings to the controller or the processor that intended processing operations are likely to infringe provisions of this Regulation,

- c) to issue reprimands to the controller or the processor when processing operations have infringed provisions of this Regulation,
- d) to instruct the controller or the processor to comply with the requests of the data subject to exercise their rights under this Regulation,
- e) to instruct the controller or the processor to bring processing operations into compliance with the provisions of this Regulation, if necessary, in a specific manner and within a specified time limit,
- f) to impose a temporary or definitive limitation, including a ban on processing,
- g) to instruct the rectification or erasure of personal data or restriction of processing pursuant to Articles 16, 17, and 18 and to instruct the communication of these actions to recipients to whom the personal data have been disclosed pursuant to Article 17, paragraph 2, and Article 19,
- h) to withdraw a certification or to order the certification body to withdraw a certificate issued in accordance with Articles 42 and 43 or to order the certification body not to issue a certification, provided that the certification requirements are not met or are no longer met,
- i) to impose administrative fines pursuant to Article 83, in addition to or instead of the measures referred to in this paragraph, depending on the circumstances of each individual case,
- j) to impose a temporary or definitive restriction, including the suspension of data flows to a recipient in a third country or to an international organization.

17. Regarding the general conditions for imposing administrative fines, Article 83, paragraph 2, of the Regulation provides the following:

"Administrative fines, depending on the circumstances of each individual case, shall be imposed in addition to or instead of the measures referred to in Article 58, paragraph 2, points (a) to (h) and Article 58, paragraph 2, point (i). In determining whether to impose an administrative fine and the amount of the administrative fine in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the relevant processing, as well as the number of data subjects affected by the infringement and the level of damage suffered,
- b) the intent or negligence of the controller or processor in causing the infringement,
- c) any actions taken by the controller or processor to mitigate the damage suffered by data subjects,
- d) the degree of cooperation with the supervisory authority to remedy the infringement,
- e) the categories of personal data affected by the infringement,
- f) the degree of responsibility of the controller or processor, taking into account the technical and organizational measures implemented pursuant to Articles 25 and 32,
- g) previous infringements by the controller or processor,
- h) the manner in which the supervisory authority was informed of the infringement, in particular, whether and to what extent the controller or processor notified the infringement,
- i) where measures referred to in Article 58, paragraph 2, have previously been ordered against the controller or processor involved with regard to the same subject matter, compliance with those measures."

****Approved Certification Mechanisms According to Article 42 and Any Other Aggravating or Mitigating Factor Arising from the****

1. ****Circumstances of the Specific Case, Such as the Economic Benefits Gained or Damages Avoided, Directly or Indirectly, from the Violation.****

2. In the event that the data controller or the processor, for the same or related processing activities, violates several provisions of this regulation, the total amount of the administrative fine shall not exceed the amount specified for the most serious violation.

3. Violations of the following provisions shall incur, according to paragraph 2, administrative fines of up to 10,000,000 EUR or, in the case of enterprises, up to 2% of the total worldwide annual turnover of the previous financial year, whichever is higher:

- a) The obligations of the data controller and the processor according to Articles 8, 11, 25 to 39, and 42 and 43, the obligations of the certification body according to Articles 42 and 43,

b)

c) The obligations of the monitoring body according to Article 41, paragraph 4.

4. Violations of the following provisions shall incur, according to paragraph 2, administrative fines of up to 20,000,000 EUR or, in the case of enterprises, up to 4% of the total worldwide annual turnover of the previous financial year, whichever is higher:

a) Applicable for the approval, according to Articles 5, 6, 7, and 9,

b) Up to 22,

c) Or to an international organization according to Articles 44 to 49,

d) Established under Chapter IX, the transfer of personal data to a recipient in a third country, the fundamental principles for processing, including the conditions that the rights of data subjects according to Articles 12, any obligations according to the law of the member state,

e) Non-compliance with an order or with a temporary or definitive restriction of processing or with the suspension of the circulation of data imposed by the supervisory authority pursuant to Article 58, paragraph 2, or failure to provide access in violation of Article 58, paragraph 1.

****Reasoning****

****G.****

18. Based on the information provided by the complainant, it appears that the subject of the complaint is the potential transfer of the complainant's data and whether there was an adequate level of protection for their data, as provided in Article 44 of the Regulation, due to the integration of a Facebook tool on the website. In this context, it should also be investigated whether Facebook Ireland and/or Facebook Inc. have an obligation to comply with Article 44 of the Regulation.

19. At this point, I note that any potential further processing is not examined in this Decision. I also note that I do not consider whether the potential transfer was made directly from the Subject to Facebook Inc. or through Facebook Ireland. The question is whether, in the case of a transfer, there was the required level of protection for the data transferred.

20. The Subject is a private news company. The website of the Subject includes articles on various topics, in the Greek language. Considering the subject matter of the website's content, it appears that the website targets individuals located in Cyprus. Additionally, the Subject is based and operates only in Cyprus and not in any other member state.

21. The Facebook Pixel tool (hereinafter referred to as the "tool") is a piece of code that is placed on a website and allows for measuring the effectiveness of the company's advertisements, understanding the actions users take on the website. According to information on a Facebook webpage, Meta's Pixel tool can help the website/company understand the effectiveness of its advertisements and the actions users take on the website, such as visiting a page or adding a product to the cart. It also allows the company to see when customers took an action after viewing the advertisement on Facebook and Instagram, which can assist with retargeting. The Facebook Pixel tool is used to ensure that the website/company's advertisements are shown to the right people, to increase the company's sales, and to measure the results of its advertisements.

22. The following: "The Meta Pixel can collect the following data:

- Http Headers – Anything that is generally present in HTTP headers, a standard web protocol sent between any browser request and any server on the internet. This information may include data like IP addresses, information about the web browser, page location, document, referrer, and person using the website.

- Regarding the tool, a related Facebook webpage mentions Pixel-specific Data – Includes Pixel ID and the Facebook Cookie."

- **Button Click Data**** – Includes any buttons clicked by site visitors, the labels of those buttons and any

pages visited as a result of the button clicks.

****Optional Values**** – Developers and marketers can optionally choose to send additional information about the visit through Custom Data events. Example custom data events are conversion value, page type and more.

****Form Field Names**** – Includes website field names like email, address, quantity, etc., for when you purchase a product or service. We don't capture field values unless you include them as part of Advanced Matching or optional values.

23. It is not known when the tool was installed on the website. However, by studying the har file submitted by the complainant, it is confirmed that at the relevant time the tool was installed.

24. The Respondent decided to integrate the tool into the website for purposes that she has defined. The Respondent did not inform my Office of the purpose for which she integrated the tool. However, due to her response that the Facebook pixel tool is a tool for paid ads of her news articles on Facebook, I conclude that the purpose of the integration is included in the above response. Therefore, due to her own decision - choice, the tool code was installed, which was provided to her by Facebook.

25. Based on the above, I find that the Respondent is the data controller for this specific processing, as she has defined the purposes and means of the processing.

26. Due to her own decision to integrate the tool, there was processing of the personal data of the complainant. Even if no processing is carried out directly by the Respondent or, as she stated, she does not maintain a record of personal data of any user who visits the website from a link on Facebook, any processing that occurs is a result of the Respondent's decision to integrate the tool.

27. Therefore, as the data controller, she was obliged to take all measures so that the level of protection of personal data, which she processes or assigns the processing to a processor, is not undermined.

28. The Terms of Use of Facebook's business tools, in section 5.a., state that:

"To the extent that Business Tool Data includes Personal Data, which you process in accordance with the General Data Protection Regulation (Regulation (EU) 2016/679) ("GDPR Regulation"), the following terms will apply:

i. The parties acknowledge and agree that you will act as the Data Controller with respect to the processing of the Personal Data included in the Business Tool Data for the purposes of providing the matching, measurement, and analytics services described in sections 2.a.i and 2.a.ii above (e.g., for providing Analytics and Reports for campaigns), and that you instruct Facebook Ireland Ltd., 4 Grand Canal Square, Grand Canal Harbour, Dublin 2 Ireland ("Facebook Ireland") to process on your behalf, and as a Processor, the relevant Personal Data for the specific purposes, in accordance with the Terms of Use of the Business Tools and Facebook's Data Processing Terms. The Data Processing Terms are expressly incorporated herein by reference and govern your relationship with Facebook Ireland in conjunction with the Terms of Use of the Business Tools.

ii. With respect to the Personal Data included in Event Data, which relates to user actions on your websites and applications that integrate Facebook's Business Tools, and for the means and purposes of processing which you jointly decide with Facebook Ireland, you and Facebook Ireland acknowledge and agree that you will act as Joint Data Controllers, in accordance with Article 26 of the GDPR Regulation. The joint responsibility for the processing of the data extends to the collection of the relevant Personal Data through Facebook's Business Tools and the subsequent transmission to Facebook Ireland, in order to be used for the purposes specified in paragraphs 2.a.iii to 2.a.v.1 ("Joint Processing") above. For more information, click [here](#). Joint Processing is subject to the Appendix for Data Controllers, which is expressly incorporated herein by reference and governs your relationship with Facebook Ireland in conjunction with the Terms of Use of the Business Tools."

Facebook Ireland remains an independent Data Controller under Article 4(7) of the GDPR Regulation for the processing that takes place after the transfer of data to Facebook Ireland.

iii. You, as applicable, and Facebook Ireland remain independent Data Controllers under Article 4(7) of the GDPR Regulation for the processing of Personal Data included in the Business Tools Data, which, according to the GDPR Regulation, are not subject to paragraphs 5.a.i and 5.a.ii.

29. Therefore, there is an acknowledgment from Facebook regarding the relationship it has with the Data Controller concerning the processing of the personal data of visitors to the website. Based on this relationship, data processing is assigned to Facebook Ireland on behalf of the data controller.

Additionally, there are instances where the Data Controller and Facebook Ireland act as joint Data Controllers. However, it is not stated in any case that the Data Controller has any other role different from the above.

30. As stated by the complainant, on August 12, 2020, at 11:43 a.m., they visited the website while logged in with their email address to a Facebook account. The har file submitted by the complainant to my Office contains information about the communication between the web server and the complainant - visitor, as well as information regarding cookies used during navigation. It has also been indicated that there was data sharing through cookies from services provided by Facebook.

31. The file `_fbp` is also included, which is stored on the device of the user - visitor of a website. Regarding this file, Facebook provides the following information on its website:

In the Facebook Data Processing Terms document, it states that:

Randomnumber is generated by the Meta Pixel SDK to ensure every `_fbp` cookie is "When the Meta Pixel is installed on a website, and the Pixel uses first-party cookies, the Pixel automatically saves a unique identifier to an `_fbp` cookie for the website domain if one does not already exist.

The `fbp` event will be `version.subdomainIndex.creationTime.randomnumber`, where:
version is always this prefix: `fb`

- `subdomainIndex` is which domain the cookie is defined on (`'com'` = 0, `'facebook.com'` = 1, `'www.facebook.com'` = 2). If you're generating this field on a server, and not saving an `_fbp` cookie, use the value 1.

- `creationTime` is the UNIX time since epoch in milliseconds when the `_fbp` cookie was saved. If you don't save the `_fbp` cookie, use the timestamp when you first observed or received this `fbp` value.

- unique.

Here's an example of what the `fbp` value could look like: `fb.1.1596403881668.1116446470`

32. "Facebook, Inc. has made commitments under the EU-U.S. Privacy Shield and Swiss-U.S. Privacy Shield that may apply to data transferred by you or Facebook Ireland Limited to Facebook, Inc. under the Applicable Product Terms." This refers to the transfer of data from the EU/EEA either directly from the website - company or from Facebook Ireland.

33. Therefore, due to the implementation of the Facebook Pixel tool on the website, at least the IP address, browser information, website location, pixel data (pixel ID), and button click data from the complainant's terminal were processed.

34. Because the tool is embedded in the website, Facebook has the technical ability to receive information that a specific Facebook account user has visited this website, provided that the user is logged into their Facebook account.

35. As a result of the application of the Facebook Business Tools on the website, cookies were placed on the complainant's terminal device, which contain a unique randomly generated value. This action enables the personalization of the complainant's terminal device and the recording of their behavior during navigation, in order to display the appropriate personalized advertisement.

36. The Data Controller stated that in no case does it collect or process personal data of users. However, even if it does not engage in such processing, this processing occurs due to its own decision to integrate the tool into the website.

37. In the decision of the European Data Protection Supervisor, dated January 5, 2022, against the European Parliament, regarding the use of Google Analytics, it is stated that the cookies that make the

user identifiable...

constitute personal data, regardless of whether the identity of the user is unknown or has been deleted after its collection. It is also stated that all data that includes identifying codes which can be used for the identification/separation of users are considered personal data and should be handled and protected as such. Despite the fact that the European Data Protection Supervisor is responsible for the implementation of Regulation (EU) 2018/1725, relevant interpretation may also be attributed to the present case.

38. In the Guidelines 5/2021 of the European Data Protection Board, regarding the interaction between the application of Article 3 and the provisions for international transfers according to Chapter V of the Regulation, the following three cumulative criteria are provided for the characterization of a processing operation as a transfer:

“1) The data controller or the processor (“exporter”) is subject to the GDPR for the specific processing.

2) The exporter discloses through transfer or makes available in another way personal data, which is subject to the said processing, to another data controller, joint data controller, or processor (“importer”).

3) The importer is located in a third country, regardless of whether the said importer is subject to the GDPR for the given processing according to Article 3, or is an international organization.”

39.

39.1. The Controller is established in Cyprus and is responsible for the operation of the website,

39.2. The Controller disclosed personal data of the complainant, due to the installation of the tool on the website, which resulted in the (final) disclosure of such data to Facebook Inc.,

39.3. Facebook Inc. has a registered office in the USA.

40.

data.

41. According to Article 28(1) of the Regulation, the Controller, as the data controller, is obliged to use only processors that provide sufficient guarantees for the implementation of appropriate technical and organizational measures, in such a way that the processing meets the requirements of the Regulation and ensures the protection of the rights of the data subject. In this case, since the Controller integrated the tool, it implies that the Controller accepted the terms of data processing included in the Facebook Business Tools document and agreed that Facebook Inc. acts as a sub-processor. Specifically, in the aforementioned document it is provided, among other things, that:

“2. You agree that Facebook may subcontract its data processing obligations under these Terms of Use for data processing to a subprocessor. However, this can only be done by means of a written agreement with the subprocessor which imposes obligations on the subprocessor that are no less burdensome than those imposed on Facebook by these data processing terms. Consequently, the disclosure of data to Facebook Inc. constitutes a transfer.

14

is Shield

Notice

Privacy

available

Facebook’s

processing terms. If a subprocessor fails to comply with such obligations, Facebook remains fully liable to you for the fulfilment of the obligations of this subprocessor. You hereby authorise Facebook to oblige Facebook Inc. (and other Facebook companies) as its subprocessors. Facebook must inform you in advance of (any) any additional subprocessor(s).”

42. Based on the information contained on a Facebook webpage regarding the “EU-U.S. Privacy Shield,” titled Privacy Shield Terms of Use, the following is provided:

“You acknowledge that the use of certain Facebook services for advertisements or measurements (the

“Services”) may result in Facebook, Inc. (“Facebook”) receiving data from you (either directly or when acting on behalf of Facebook Ireland Ltd). This is done by referring to the EU-US Privacy Shield or the Swiss-US Privacy Shield (collectively, “Privacy Shield”). If the Privacy Shield applies to the data you provide and without limiting any agreement between you and Facebook, you acknowledge and agree to:

- at www.facebook.com/about/privacyshield; he explains the certification of Facebook. In accordance with your obligations in connection with your use of the Services, you undertake to provide persons with reasonable and appropriate information about the Services.

- Facebook may provide data subjects with contact information about you through the Services, allowing them, among other things, to contact you directly in order to exercise their rights under the Privacy Shield.

- Facebook may receive requests or complaints from data subjects and may provide them with an independent mechanism for recourse and dispute resolution. However, you will remain responsible for resolving any complaints made to you by data subjects regarding your processing of the personal data of the data subjects in connection with the Services (whether they are directly addressed to you or to us).

- You undertake to take all reasonable steps (including those reasonably requested by Facebook) to enable Facebook to comply with its Privacy Shield obligations, including assistance to resolve complaints. In the event of a conflict between these Terms of Use and other Terms of Use that invoke these Terms of Use, these Terms of Use shall prevail.

Last change: September 29, 2017»

43. Based on the above, it follows that due to the visit to the website, data may be transferred to the U.S. However, the

Respondent does not acknowledge at all the possibility of transfer, nor has it answered the relevant questions posed to it. Furthermore, it has not provided me with any evidence that no data transfer took place.

44. Moreover, it appears that at the relevant time, the data transfers

that were taking place due to the visit to the website were based on the "EU-U.S. Privacy Shield."

45. Inc. is characterized as a provider of electronic communication services, within the meaning of 50 U.S. Code § 1881(b)(4) and, therefore, is subject to supervision by U.S. intelligence services according to 50 U.S. Code § 1881a ("FISA 702"), and therefore, has the obligation to provide personal data to U.S. authorities.

The Facebook

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46. Due to the transfer to the U.S., there could be access by U.S. authorities to the personal data of the complainant, a fact that the Respondent cannot ascertain. In this case, the Respondent is not exempt from its responsibility for the protection of the personal data of the complainant. Moreover, the Respondent continued to maintain the tool installed on its website, even after the decision of the European Court, case C-311/18, dated July 16, 2020, according to which the "EU-U.S. Privacy Shield" was deemed invalid (Executive Decision (EU) 2016/1250 of the Commission, dated July 12, 2016).

47. In the case of a transfer, the relevant obligations set out in Chapter V of the Regulation must be adhered to. Specifically, an adequate level of protection for the transferred data must be provided, as stipulated in Article 44 of the Regulation. Therefore, one of the following conditions must exist:

- 47.1. adequacy decision, pursuant to Article 45 of the Regulation,
- 47.2. appropriate safeguards, pursuant to Article 46 of the Regulation,
- 47.3. derogations for specific situations, pursuant to Article 49 of the Regulation.

48. Due to the aforementioned decision of the European Court, case C-311/18, there was no adequacy decision for the U.S. at the relevant time.

49. In this Decision, a more detailed analysis of the legal status of the U.S. (as a third country) is not required, as the CJEU has already addressed this in the aforementioned decision of July 16, 2020. Based on the CJEU's decision, it follows that the EU-U.S. adequacy decision did not

provide an adequate level of protection for individuals under the relevant U.S. legislation and the implementation of official surveillance programs, among others under Article 702 of FISA and Executive Order 12333 in combination with the presidential directive on policy 28 (PPD-28).

50. Furthermore, the Respondent has not informed my Office of the existence of appropriate safeguards, pursuant to Article 46 of the Regulation, or of derogations for specific situations, pursuant to Article 49 of the Regulation. In any case, none of the derogations in Article 49 of the Regulation can be invoked as a legal basis.

51. Therefore, based on all the above, I find that the Respondent has not demonstrated that, due to the transfer, the level of protection of individuals guaranteed by the Regulation is not undermined, in violation of Article 44 of the Regulation.

52. Pursuant to Article 5(2) of the Regulation, the data controller bears the responsibility and is in a position to demonstrate compliance with paragraph 1 ("accountability"). However, based on the positions that the Respondent submitted to my Office, I find that not only has it failed to demonstrate its compliance with Article 5(1) of the Regulation, but it also does not acknowledge the processing that was carried out due to its own decision to integrate the tool.

53. Therefore, I find a violation of Article 5(2) by the Respondent. This finding would still hold even if there were no transfer of the complainant's data to the U.S.

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54. The complainant also requested clarification on whether the provisions of the Facebook Business Tools Terms and Facebook Data Processing Terms, at the time of the complaint submission and as they would be amended from August 31, 2020, met the requirements of Article 28 of the Regulation regarding the transfer of personal data to third countries.

55. According to Article 5 of the Regulation, it is established that the data controller is responsible for adhering to the principles governing the processing of personal data. However, the possibility of Facebook Inc. receiving requests from U.S. security authorities does not automatically lead to the conclusion that it has determined the purposes and means of processing, i.e., that it is considered a data controller under Article 28(10) of the Regulation. Furthermore, liability cannot be attributed to Facebook Ireland or Facebook Inc. for a violation of Article 28, since under that article, the relevant responsibility lies with the data controller.

56. Beyond the above, it should be examined whether Facebook Inc. is subject, in the present case, to the obligations set out in Chapter V of the Regulation. Based on the Guidelines 5/2021 of the

European Data Protection Board, it is established that a transfer occurs when "the exporter discloses or makes available personal data, which are subject to the processing in question, to another data controller, a joint data controller, or a processor ('importer')." Therefore, the requirements of Chapter V of the Regulation must be adhered to by the data exporter, namely the Controller, but not by the data importer, in this case, Facebook Inc.

57. Therefore, assessing the said transfer, no violation of Article 44 of the Regulation by Facebook Inc. can be established.

D.

58. Taking into account all the above elements, as they have been presented, and based on the powers conferred upon me by Article 57(1)(f) of the Regulation, I find that there is a violation by the Controller of:

58.1. Article 5(2) of Regulation (EU) 2016/679, because it did not demonstrate compliance with paragraph 1 of Article 5 of the Regulation, namely the principle of accountability, and

58.2. Article 44 of Regulation (EU) 2016/679, because it did not ensure that the level of protection of the complainant guaranteed by the Regulation is not undermined.

59. After considering and weighing:

(a) the provisions of Article 58(2) and Article 83 of the Regulation,

(b) all existing correspondence before me,

I conclude that, under the circumstances, the imposition of an administrative fine is not justified.

All circumstances and factors that the complainant and the Controller have presented regarding the applicable legislative basis concerning the anticipated administrative sanctions.

Conclusion

Also, due to the new EU-U.S. Data Protection Framework, namely the Executive Decision (EU) 2023/1795 of the Commission of July 10, 2023, regarding the adequacy of the level of protection of personal data based on the EU-U.S. Data Protection Framework, I find that the imposition of an immediate prohibition or suspension of any data transfer from the Controller to Facebook Inc. is not justified.

60. Nevertheless, considering the aforementioned facts, the legal aspect on which this Decision is based, and the analysis as explained above, and exercising the powers conferred upon me by Article 58(2)(b) of the Regulation,

I have decided

in my judgment and in accordance with the above provisions, to address the Publications "ARKTINOS" Ltd (newspaper POLITIS):

A reprimand for the violation of Article 5(2) of Regulation (EU) 2016/679,

A reprimand for the violation of Article 44 of Regulation (EU) 2016/679, and

An order that, in the event it continues to use the tool, it ensures that the transfer can be carried out based on the new EU-U.S. Data Protection Framework, Executive Decision (EU) 2023/1795, or based on appropriate safeguards under Article 46 of the Regulation, and inform me accordingly within one month from the receipt of this Decision.

Irini Loizidou Nikolaidou

Commissioner for Personal Data Protection

February 28, 2024